

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, May 28, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, May 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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20CV-02472	Ramiro Ramos vs Javier Zambrano et al.
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Order to Show Cause Re: Sanctions

Based on the declaration of counsel, Dennis Chin, filed May 5, 2026, the Court finds GOOD CAUSE NOT to issue sanctions. No appearance is required.

Order to Show Cause Re: Dismissal

Based on the declaration of counsel, Dennis Chin, filed May 5, 2026, the Court finds GOOD CAUSE NOT to dismiss the within action. No appearance is required.

Default Prove-Up Hearing

The default prove-up hearing is DROPPED FROM CALENDAR. The Court has reviewed the declarations submitted pursuant to Code of Civil Procedure section 585 in support of the request for default judgment and found the evidence sufficient for entry of judgment. The Court has signed the order for entry of judgment which will be processed by the clerk's office.

23CV-04368

Tony Borba, et al. vs County of Merced, et al.

Motion to Transfer

The Department of Fish and Wildlife's motion to transfer pursuant to Code of Civil Procedure section 394 is DENIED.

Code of Civil Procedure section 394 specifically excludes the State of California and its agencies from the code section. (Code Civ. Proc. § 394, subd. (b).) The Court is not aware of any authority, and none is provided, that supports the assertion CDFW may move to transfer a lawsuit initiated by a local government entity to another county pursuant to Code of Civil Procedure section 394.

Further, in the context of damages as we have here, when an action is commenced by a local government entity, Government Code section 955.3 applies. "Notwithstanding any provision of law, when a city, county, or city and county, or local agency is a plaintiff in an action or proceeding against the State of California, the action may be tried in any city or county, or city and county, where the city, county, or city and county, or local agency is situated." (Gov. Code § 955.3.) Thus, transfer may only be ordered in accordance with Code of Civil Procedure section 397.

24CV-05064

Heriberto Martinez vs Angel Anaya, et al.

Motion to Be Relieved as Counsel

The unopposed motion by attorney Kimberly G. Flores and the law firm of Berliner Cohen LLP, to be relieved as counsel for plaintiff Heriberto Martinez, AKA Eddie Martinez is GRANTED, effective upon the filing of a proof of service of the signed order on the client.

The Court will sign the order lodged with the court on April 15, 2026.

25CV-03246

People vs \$160,625.00 Currency

Status Conference

Appearance required.

25CV-04604

Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Sanctions

Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.

Case Management Conference

Appearance required.

25CV-04984

Russel Daniels vs P&G Towing, et al.

Order to Show Cause Re: Sanctions

Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.

Case Management Conference

Appearance required.

25CV-05374

Oscar Garcia vs Yosemite Valley Beef Packing Company, Inc.

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Form Interrogatories - General (Set One) And Special Interrogatories (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

The request to compel further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, is DENIED.

As to the Form Interrogatories, Set One, the standard definition of "INCIDENT" as provided by Judicial Form DISC-001, Sec. 4. Definitions, subdivision (a)(1) is insufficient in this instance rendering the requests vague and ambiguous. As there appears to be multiple actions by Defendant at issue, the use of a special definition may have been more appropriate as the action appear to arise from a course of conduct or series of events occurring over a period of time. (See Judicial Form DISC-001, Sec. 2, subd. (c).)

The objections that the term "INCIDENT" is vague and ambiguous are SUSTAINED. The objections as to compound and overbroad are OVERRULED. The objections as to information being withheld on a claim of privilege are OVERRULED WITHOUT PREJUDICE as no information was provided and the objections based on privilege are not applicable at this time. The objections as to lacks foundation are SUSTAINED due to the definition of "INCIDENT" being vague and ambiguous.

As to Special Interrogatories, Set One, No. 5, the response is substantially code-compliant. Although Defendant objected, they did respond that after a reasonable attempt to obtain the information they are unable to respond at this time. The Court cannot force Defendant to respond with information they do not have.

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Admissions (Set One); Request for Monetary Sanctions in The Amount Of \$5,410.00

Plaintiff's motion to compel further responses to Requests for Admissions, Set One, is GRANTED IN PART and DENIED IN PART.

The motion is GRANTED as to Request No. 2. Defendant objects and then states they lack sufficient knowledge and information to be able to admit or deny the request. Code of Civil Procedure section 2033.220, subdivision (3)(c) states that "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party *shall* state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (*Italics added.*)

The code section is clear: if Defendant is unable to admit or deny the matter, they must state that they have conducted a reasonable inquiry and the information known or readily obtainable is insufficient for the Defendant to admit or deny. Further, Defendant could have admitted in part and qualified the response. (See, Code Civ. Proc. § 2033.220, subd. (b)(1).) For example, as stated in their opposition statement "Defendant understands that Plaintiff began his employment nearly 20 years ago in 2007, but does not know when his employment actually began, including whether it was 'on or around June 1, 2007.'" (Opp. 2:15-17.) Accordingly, Defendant is ordered to provide a further verified, code-compliant, response to Request No. 2.

The motion is DENIED as to Request No. 10. Even with the limiting language in Plaintiff's meet and confer letter, dated March 25, 2026, of the past four (4) years, the request as drafted is vague and ambiguous as to "hourly employees."

The motion is DENIED as to Request No. 14. Although Plaintiff's meet and confer letter, dated March 25, 2026, adequately limits the response to "Defendant only" (Pltf. March 25, 2026, Ltr., p. 4), it impermissibly creates a conjunctive and/or subparts by incorporating both Labor Code sections 1102.5 and 98.6. (See, Code Civ. Proc. § 2033.060, subd. (f).)

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Production of Documents (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

The motion to compel further responses to Requests for Production of Documents, Set One, is DENIED. At the time of Defendant's response, Defendant had not yet filed or served any answer nor alleged any affirmative defenses. Plaintiff's recourse is to make a supplemental demand pursuant to Code of Civil Procedure section 2031.050.

Sanctions:

The request for monetary sanctions by both parties is DENIED. Both parties acted with substantial justification for bringing and opposing the motions.

26CV-00480

Robert Frank vs Belma Alvarado

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service on Respondent was filed on May 6, 2026.

26CV-01995

Petition of: Jeremiah Kincannon

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, May 28, 2026
10:00 a.m.

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Case No.	Title / Description
26CV-00333	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
Court Trial	
Appearance required.	

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, May 28, 2026
11:00 am

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Case No.	Title / Description
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19CV-03964	Mitchell Garibaldi vs. Derek Duni
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Review of Case Status

Appearance required.

25CV-07080	Victor Garcia Garfias vs. Nidian Herrera
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Order Show Cause re: Restraining Order

Appearance required.